BRENDAN NGEHSI NEWANFORBI
Petitioner In Pro Per
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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the CHP Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the CHP Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the CHP Dublin Area; and DOES 1 through 10, inclusive,** Respondents.	**Case No. 26CV191136** **[PROPOSED] ORDER OVERRULING DEMURRER TO PETITION FOR WRIT OF MANDATE** Date: August 28, 2026 Time: 9:00 a.m. **Assigned for All Purposes to:** Hon. Jenna M. Whitman, Dept. 25 Action Filed: May 29, 2026

[PROPOSED] ORDER

The demurrer of Respondent California Highway Patrol ("CHP") to the Petition for Writ of Mandate came on regularly for hearing in Department 25 of this Court on August 28, 2026. Respondent appeared through counsel; Petitioner appeared in propria persona.

Having considered the papers filed in connection with the demurrer, the request for judicial notice, the record in this action, and the arguments of the parties, the Court orders as follows:

DISPOSITION

[ ] The demurrer is **OVERRULED** in its entirety. Respondent shall file and serve an answer to the Petition within twenty (20) days after service of notice of this order.

[ ] The demurrer is **SUSTAINED, with leave to amend,** as to:

[ ] First Cause of Action (Pen. Code, § 679.10, subd. (b))

[ ] Second Cause of Action (Pen. Code, § 679.10, subds. (g), (i)(2))

[ ] Third Cause of Action (Pen. Code, § 679.10, subd. (h))

[ ] Fourth Cause of Action (declaratory relief)

Petitioner shall file and serve an amended petition within twenty (20) days after service of notice of this order.

IT IS SO ORDERED.

Dated: _____

_____

The Honorable Jenna M. Whitman

Judge of the Superior Court